



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2060: educational facilities; abortion; prohibited activities

GILLETTE FLOOR AMENDMENT

1. Prohibits a public school from allowing an abortion provider or a medical facility or organization that refers patients to an abortion clinic to:
 - a. provide health education instruction in the school;
 - b. provide health education instructional programs or curricula to the school or school employees; or
 - c. distribute or display any health education materials or media in the school that are created, paid for or donated by the abortion provider or bear an identifying mark of the abortion provider.
2. Authorizes the Superintendent of Public Instruction, if the Arizona Department of Education (ADE) determines that a public school is not in compliance with the prohibition and if the public school fails to correct the noncompliance within 90 days after receiving notice from ADE, to withhold any portion of the public school's state aid apportionment until ADE determines that the public school is in compliance with the prohibition.
3. Defines *abortion clinic* and *abortion provider*.

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2/24/2026

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GILLETTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2060
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-115.01, Arizona Revised Statutes, is amended
3 to read:

4 15-115.01. Public educational institution facilities:
5 employees; prohibition; exception; definitions

6 A. A facility that is run by or that operates on the property of a
7 public educational institution may not perform or provide an abortion,
8 unless the abortion is necessary to save the life of the woman having the
9 abortion.

10 B. A PUBLIC EDUCATIONAL INSTITUTION MAY NOT ENCOURAGE OR FACILITATE
11 ABORTIONS. AN EMPLOYEE OF A PUBLIC EDUCATIONAL INSTITUTION WHO IS ACTING
12 IN THE EMPLOYEE'S OFFICIAL CAPACITY MAY NOT ENCOURAGE OR FACILITATE
13 ABORTIONS.

14 ~~B.~~ C. For the purposes of this section:

15 1. "Abortion" has the same meaning prescribed in section 36-2151.

16 ~~2. "Medical emergency" has the same meaning prescribed in section~~
17 ~~36-2151.~~

18 ~~3.~~ 2. "Public educational institution" means any of the following:

19 (a) A community college as defined in section 15-1401.

20 (b) A university under the jurisdiction of the Arizona board of
21 regents.

22 (c) A school district, including its schools.

23 (d) A charter school.

24 (e) An accommodation school.

25 (f) The Arizona state schools for the deaf and the blind.

1 <<Sec. 2. Title 15, chapter 1, article 1, Arizona Revised Statutes,
2 is amended by adding section 15-115.02, to read:

3 15-115.02. Health education instruction; prohibitions;
4 withholding of state monies; definitions

5 [A. A PUBLIC SCHOOL MAY NOT ALLOW AN ABORTION PROVIDER OR A MEDICAL
6 FACILITY OR ORGANIZATION THAT REFERS PATIENTS TO AN ABORTION CLINIC TO DO
7 ANY OF THE FOLLOWING:

8 1. PROVIDE HEALTH EDUCATION INSTRUCTION IN THE SCHOOL.

9 2. PROVIDE HEALTH EDUCATION INSTRUCTIONAL PROGRAMS OR CURRICULA TO
10 THE SCHOOL OR SCHOOL EMPLOYEES.

11 3. DISTRIBUTE OR DISPLAY ANY HEALTH EDUCATION MATERIALS OR MEDIA IN
12 THE SCHOOL IF THE MATERIALS OR MEDIA ARE CREATED, PAID FOR OR DONATED BY
13 THE ABORTION PROVIDER OR BEAR AN IDENTIFYING MARK OF THE ABORTION
14 PROVIDER.

15 B. IF THE DEPARTMENT OF EDUCATION DETERMINES THAT A PUBLIC SCHOOL
16 IS NOT IN COMPLIANCE WITH SUBSECTION A OF THIS SECTION AND IF THE PUBLIC
17 SCHOOL FAILS TO CORRECT THE NONCOMPLIANCE WITHIN NINETY DAYS AFTER
18 RECEIVING NOTICE FROM THE DEPARTMENT OF EDUCATION, THE SUPERINTENDENT OF
19 PUBLIC INSTRUCTION MAY WITHHOLD ANY PORTION OF THE PUBLIC SCHOOL'S
20 APPORTIONMENT OF STATE AID FROM THE DATE OF THE DETERMINATION OF
21 NONCOMPLIANCE UNTIL THE DEPARTMENT OF EDUCATION DETERMINES THAT THE PUBLIC
22 SCHOOL IS COMPLYING WITH SUBSECTION A OF THIS SECTION.

23 C. FOR THE PURPOSES OF THIS SECTION:

24 1. "ABORTION CLINIC" HAS THE SAME MEANING PRESCRIBED IN SECTION
25 36-449.01.

26 2. "ABORTION PROVIDER" INCLUDES:

27 (a) AN ABORTION CLINIC.

28 (b) ANY ENTITY THAT CONTROLS, IS CONTROLLED BY OR IS UNDER COMMON
29 CONTROL WITH AN ABORTION CLINIC.

30 (c) ANY ENTITY THAT IS A PARTY TO A FRANCHISING, LICENSING OR
31 SIMILAR AGREEMENT WITH AN ABORTION CLINIC.

32 (d) ANY INDIVIDUAL WHO IS ACTING AS AN EMPLOYEE OR REPRESENTATIVE
33 OF AN ENTITY DESCRIBED IN SUBDIVISION (a), (b) OR (c) OF THIS
34 PARAGRAPH.]]>>

35 Sec. 3. Section 15-1630, Arizona Revised Statutes, is amended to
36 read:

37 15-1630. Educational facilities; employees; prohibition;
38 exception

39 A. ~~NO~~ AN abortion shall NOT be performed at any facility under the
40 jurisdiction of the Arizona board of regents unless ~~such~~ THE abortion is
41 necessary to save the life of the woman having the abortion.

House Amendments to H.B. 2060

1 B. A UNIVERSITY UNDER THE JURISDICTION OF THE ARIZONA BOARD OF
2 REGENTS MAY NOT ENCOURAGE OR FACILITATE ABORTIONS. AN EMPLOYEE OF THE
3 ARIZONA BOARD OF REGENTS OR OF A UNIVERSITY UNDER THE JURISDICTION OF THE
4 ARIZONA BOARD OF REGENTS WHO IS ACTING IN THE EMPLOYEE'S OFFICIAL CAPACITY
5 MAY NOT ENCOURAGE OR FACILITATE ABORTIONS.

6 Enroll and engross to conform

7 Amend title to conform

JOHN GILLETTE

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02/17/2026

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C: VS

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